

DIRECTIVE PRINCIPLES OF STATE POLICY

Articles 36-51 | Article 37 | FR-DPSP harmony | Article 31C | Governance and implementation

1 PART IV CONSTITUTIONAL ARCHITECTURE AND ORIGIN

PART IV: DIRECTIVE PRINCIPLES OF STATE POLICY, ARTICLES 36-51

ORIGIN -> Irish Constitution of 1937; Irish model had a Spanish antecedent

INDIAN DESIGN -> Ambedkar's 1935 Instrument-of-Instructions analogy,
now addressed to elected legislatures and executives

ARTICLE 36 -> State has the Part III / Article 12 meaning

ARTICLE 37 -> not enforceable by courts

-> fundamental in governance

-> State duty to apply in making laws

CORE RULE: non-justiciable != optional; constitutional duty != automatic writ remedy.



2 ARTICLES 38 AND 39(A)-(F): DISTRIBUTIVE CORE

ARTICLE 38

38(1) welfare through social, economic and political justice

38(2) minimise inequalities: income + status + facilities + opportunities

ARTICLE 39

(a) adequate livelihood for citizens, men and women equally

(b) material resources distributed to subserve common good

(c) no concentration of wealth/means of production to common detriment

(d) equal pay for equal work for men and women

(e) worker/child health protected; no unsuitable avocation from economic need

(f) childhood in freedom/dignity; protection from exploitation/abandonment

TRAP: 39(b) distribution and 39(c) anti-concentration are related, not identical.



3 ARTICLES 39A-43B: INSTITUTIONS, WORK AND DEMOCRATIC ECONOMY

39A -> equal justice + free legal aid

40 -> village panchayats as units of self-government

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ECONOMY

3 ARTICLES 39A-43B: INSTITUTIONS, WORK AND DEMOCRATIC ECONOMY

39A -> equal justice + free legal aid
40 -> village panchayats as units of self-government
41 -> work, education and public assistance
EXPRESS LIMIT: within economic capacity and development
42 -> just/humane work conditions + maternity relief
43 -> living wage + decent life + leisure/culture + rural cottage industries
43A -> worker participation in industrial management
43B -> voluntary formation + autonomy + democratic control
+ professional management of co-operative societies

CLOSE PAIR: 43 worker welfare/cottage economy | 43A participation | 43B co-operatives.

4 ARTICLES 44-51: REFORM, CAPABILITY, ECOLOGY AND PEACE

44 -> State endeavour for a Uniform Civil Code for citizens throughout India
45 -> early childhood care and education until completion of six years
46 -> weaker sections, especially SC/ST; education/economy + anti-exploitation
47 -> nutrition + living standard + public health; qualified prohibition direction
48 -> scientific agriculture/animal husbandry + cattle protection
48A -> environment + forests + wildlife
49 -> nationally important monument/place/object declared by/under Parliamentary law
50 -> separate judiciary from executive in State public services
51 -> (a) peace/security (b) just/honourable relations
(c) respect international law/treaties (d) arbitration

TRAP: Article 51(c) is not automatic domestic incorporation of every treaty.

5 CLASSIFICATION AND DIRECT PART IV AMENDMENTS

TEXTBOOK CLASSIFICATION - NOT CONSTITUTIONAL LABELS

SOCIALISTIC -> 38, 39, 39A, 41, 42, 43, 43A, 47

GANDHIAN -> 40, 43, 43B, 46, 47, 48

LIBERAL-INTELLECTUAL -> 44, 45, 48, 48A, 49, 50, 51

OVERLAPS -> 43, 46, 47 and 48

DIRECT PART IV CHANGE

42nd (1976) -> 39(f) recast; 39A, 43A, 48A inserted

44th (1978) -> 38(2) inserted

86th (2002) -> Article 21A inserted; Article 45 recast below six

97th (2011) -> Article 43B inserted

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EXAM RULE: exact Article first; category second.

6 FR-DPSP PHASES AND AMENDMENT RESPONSE

1951 CHAMPAKAM -> FR prevails in direct conflict; First Amendment response

1951 FIRST -> 15(4), 31A and 31B accommodation

1955 FOURTH -> strengthened land-reform/property protection architecture

1967 GOLAKNATH -> Parliament cannot abridge FR by amendment

1971 24TH -> amendment power affirmed

1971 25TH -> Article 31C for 39(b)/(c)

1973 KESAVANANDA -> amendment subject to basic structure;

31C shield survives, review-ouster fails

1976 42ND -> attempted extension of 31C to all DPSPs

1980 MINERVA MILLS -> extension invalid; Part III-IV harmony is basic structure

CURRENT DOCTRINE: harmony/balance, not permanent absolute supremacy of either Part.

7 ARTICLE 31C AFTER PROPERTY OWNERS ASSOCIATION (2024)

STEP 1 -> Does the law genuinely implement Article 39(b) or 39(c)?

STEP 2 -> Is there a real and substantial nexus?

STEP 3 -> For 39(b), is the material resource 'of the community' contextually?

STEP 4 -> Does distribution subserve common good?

STEP 5 -> Apply shield against Articles 14 and 19

STEP 6 -> Preserve judicial review and basic-structure limits

PROPERTY OWNERS ASSOCIATION, 5 NOV 2024

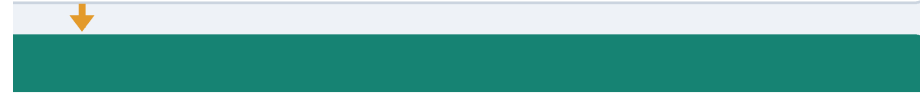
some privately owned resources may qualify

not every private asset qualifies automatically

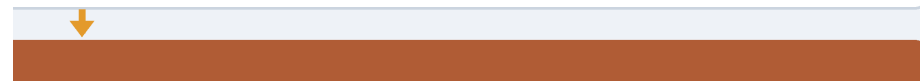
relevant context includes nature, scarcity, community impact and concentration

TRAP: welfare recital != conclusive 31C protection.

8 GOVERNANCE VALUE AND IMPLEMENTATION CHAIN



either Part.



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8 GOVERNANCE VALUE AND IMPLEMENTATION CHAIN

DPSP TEXT

- > legislative competence
- > law and appropriation
- > rules, institutions and front-line capacity
- > grievance correction and judicial legality review
- > audit, legislative scrutiny, opposition, civil society and elections
- > measurable outcomes

USES

- legislature -> constitutional purpose for law
- executive -> policy priorities and administration
- judiciary -> rights/statute interpretation within institutional limits
- politics -> manifesto, budget and electoral accountability

LIMIT: a scheme or statute is an implementation vehicle, not proof of universal fulfilment.

9 NAMED IMPLEMENTATION EXAMPLES WITH HONEST LIMITS

- 38/39 -> land reform + Articles 31A/31B | basic-structure review remains
- 39A -> Legal Services Authorities Act 1987 + NALSA | quality/awareness gaps
- 40 -> 73rd Amendment / Part IX | devolution depends on funds-functions-functionaries
- 41/45 -> Article 21A + RTE Act 2009 | below-six Article 45 remains; outcome gaps
- 42/43 -> maternity, wage and labour legislation | informality/enforcement limits
- 47 -> nutrition/public-health/prohibition laws | capacity and liberty trade-offs
- 48A -> environmental statutes | compliance and enforcement gaps
- 49 -> AMASR Act 1958 / ASI | conservation-development tension
- 50 -> judicial-executive separation reforms | capacity questions
- 51 -> treaty practice/arbitration legislation | no automatic self-execution

RULE: named evidence -> what it proves -> honest limitation.

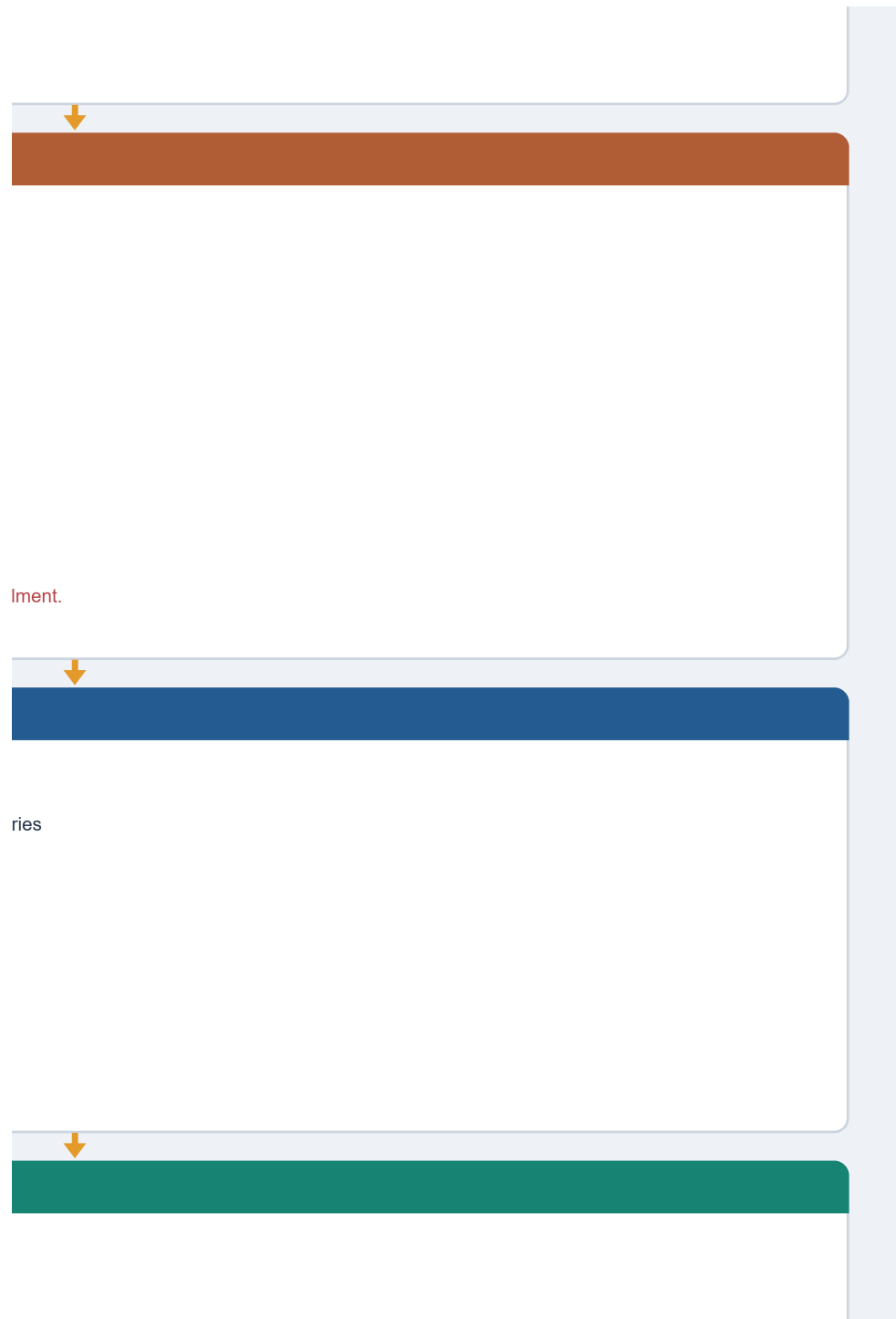
10 ARTICLE 39A, NALSA AND LOK ADALAT FIREWALL

ARTICLE 39A -> EQUAL JUSTICE + FREE LEGAL AID

Article 21 link -> M.H. Hoskot; Hussainara Khatoon

statute -> Legal Services Authorities Act 1987

chain -> NALSA -> SLISA / court committees -> DLISA -> Taluk committees



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section 12 -> category or prescribed-income eligibility

section 13 -> authority satisfied about prima-facie case

ORDINARY LOK ADALAT

settlement/consent only; no merits adjudication after failure

award deemed decree, final/binding, no appeal

PERMANENT LOK ADALAT

pre-litigation public-utility dispute; conciliation first

bounded merits decision after failure, if dispute does not relate to an offence.



11 ARTICLE 44 AND LOCATION BOUNDARIES

ARTICLE 44

direction -> State shall endeavour; citizens; throughout India

field -> Concurrent List Entry 5

design -> equality/dignity + religion/pluralism + competence + transition

courts -> decide concrete disputes; observations do not enact a UCC

routes -> targeted reform | community codification | secular option | common code

OUTSIDE-PART-IV STUDY DIRECTIONS

Article 335 -> SC/ST service claims consistently with efficiency

Article 350A -> primary mother-tongue facilities for linguistic minorities

Article 351 -> Union duty to develop/spread Hindi

BOUNDARY: only Articles 36-51 are Part IV DPSPs; detailed FR is Topic 7,
Duties Topic 9 and amendment doctrine Topic 10.



12 CRITICISM, TRAPS, PYQS AND ANSWER SPINE

CRITICISM -> no remedy | vague arrangement | resource dependence

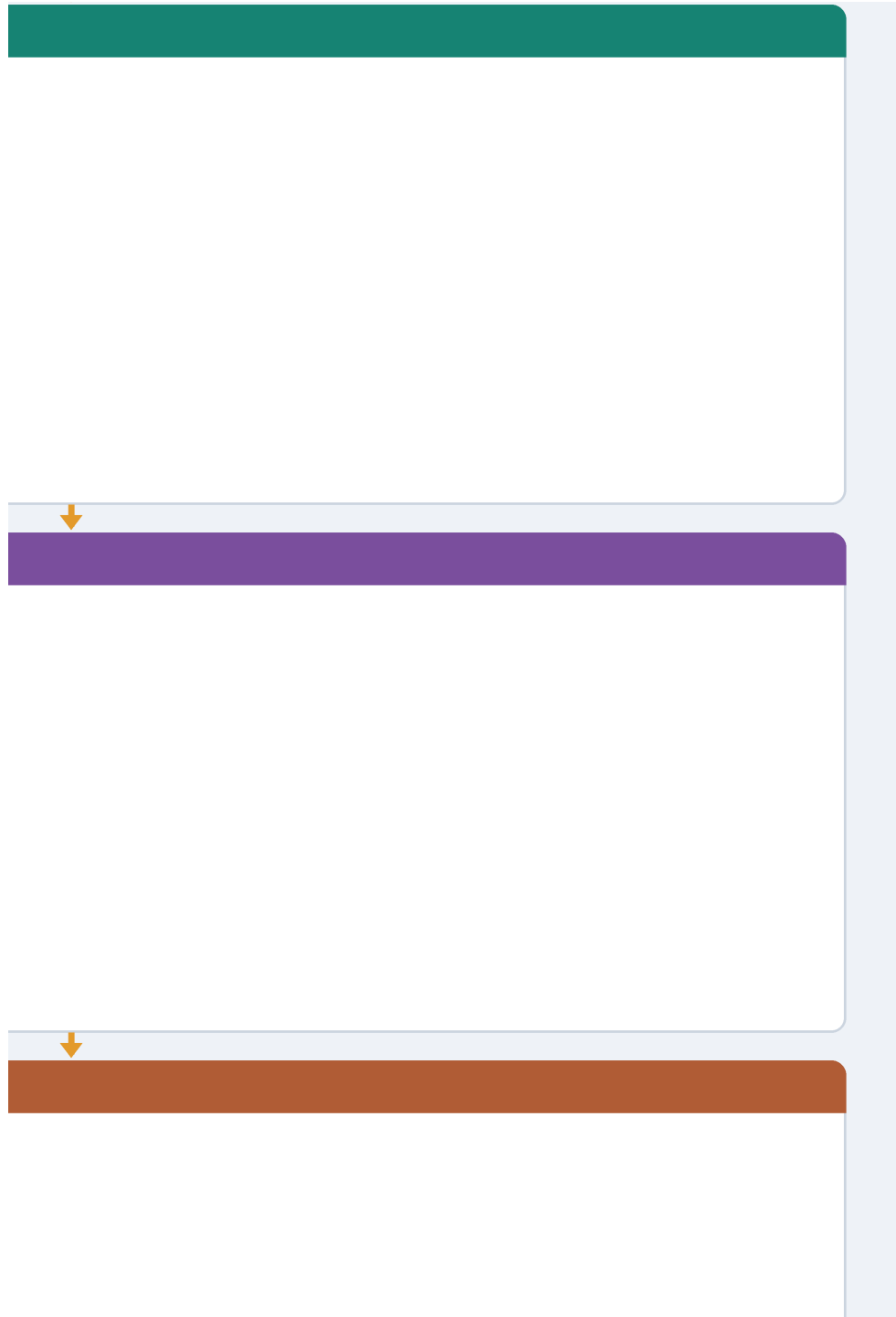
| federal friction | judicial competence | symbolic compliance

RESPONSE -> Article 37 duty | institutional conversion | interpretation

| budgets/audit | elections | measurable outcomes

PYQ RAIL

2020 -> Article 50; UDHR reflection; legal-aid eligibility;



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PYQ RAIL

2020 -> Article 50; UDHR reflection; legal-aid eligibility;

welfare State; Article 37 enforceability/law-making

2021 -> Article 39(c) concentration

2023 GS-II -> entitlement to free legal aid + role of NALSA

2025 -> Part matching; held final local-official key C

ANSWER SPINE

thesis -> exact Article -> amendment/case/law -> mechanism -> named evidence

-> rights/federal/fiscal qualification -> graded conclusion

VERDICT: constitutional compass and governance duty, not a self-executing delivery guarantee.

One conceptual spine across the learning session, workbook, ASCII master and quick-glance chart.

